THREEWAYS (PRIVATE) LIMITED
t/a THREEWAYS SAFARIS
versus
PETRUS LOUW ERASMUS

HIGH COURT OF ZIMBABWE
MUCHAWA J
HARARE; 24 March & 23 April 2026

Chamber Application

M A Ruwitah, for the applicant
V Majoko, for the respondent

MUCHAWA J: This is a chamber application made in terms of r 75(4) of the High Court Rules (SI 202 of 2021). The application is premised on the facts that the respondent being a *peregrinus*, having failed to pay security for costs under case number HCH 6082/25 as ordered by the court under case number HCH 5137/25 despite service of the court order, the applicant can have recourse to rule 75(4).

In terms of this rule the judge or court may, if security is not given within a reasonable time, on application dismiss any proceedings instituted or strike out any pleadings filed by the party in default, or make such other order as to it may seem fit.

The applicant is a company duly incorporated with limited liability in terms of the laws of Zimbabwe. The respondent is a South African male adult who is domiciled in South Africa.

On 17 October 2025, the applicant got an order *ex-parte* whose terms were:

"IT IS ORDERED THAT
1. The Sheriff of the High Court shall attach;
   (i) the cattle belonging to the respondent which are listed on Annexure B of the Chamber application (which list shall be separately given to the said Sheriff) which cattle are at Brentwood Farm, Masvingo, and
   (ii) the movables belonging to the respondent as listed on Annexure C of the chamber application (which list shall be separately given to the sheriff) which goods are at Bothasrus Farm, Beitbridge, to confirm jurisdiction in the suit to be filed by the applicant in accordance with this order.
2. The respondent shall pay USD $25 000 as security for costs."

The above order was obtained under case number HCH 5137/25. After getting the order confirming jurisdiction, the applicant filed case number HCH 6082/25. Whereas the

applicant insists that the order under HCH 5137/25 was properly served, the respondent contends there was no proper service. The security for costs remains unpaid and that is the basis on which the applicant seeks to have the notice of appearance to defend and the request for further particulars struck out.

The application is opposed and a point *in limine has* been taken by the respondent. It relates to the resolution filed which appoints Mr Louis Petrus van der Merwe as a deponent to the founding affidavit. The issue taken is that it is improper for the deponent to be the only one who appended his signature to a resolution which appoints him. This is because the applicant is a company. The impugning allegations are that the resolution does not state that it is a resolution of the applicant, it makes no mention of the organ of the applicant which made the resolution. There is no mention of the board of directors. There is no role of the secretary or other director or company functionary.

It is submitted by the respondent that between 2021 and December 2024, he was a director in the applicant company, and the deponent passed a resolution signed by him alone in which he "resigned" the respondent. Under case No. HCBC 205/26, the respondent has challenged the purported resignation on the basis that the deponent filed false returns.

Though the respondent challenges his purported resignation, he states that after the alleged removal, the deponent appointed Frank McCourt as director and Pride Mandizvidza as secretary yet none of these co-signed the resolution.

Reference was made to the cases of *Wild Goose Safaris (Pvt) Ltd* v *Sipho Mpofu &* ORS HB 169/18 and *Bulchimx Gmbh Import- Export Techno Impex Sofia Bulgaria SC v Bulchimex Gmbh Import Export (Pvt) Ltd & ORS* HH 213/18 for the contention that if is highly irregular for the deponent to the founding affidavit to act on behalf of the company based on authority deriving from a resolution signed by the same person.

It was prayed that the matter be struck off the roll with costs.

In response, the applicant submitted that the deponent is in fact, a sole director and relied on the cases of *Dube* v *PSMAS* 2019 ZLR (3) 589 and *Madzivire & ORS* v *Zvarivadza* & ORS 2006 (1) ZLR (s) to argue that the matter *in casu* falls within the exception where a meeting of directors and a resolution would not be required where the company has only one director who can perform all judicial actions without holding a full meeting.

Mr *Majoko* countered that the founding affidavit should have contained the averment that the deponent is the sole director but there is none. The applicant could, it is argued, have filed an answering affidavit to clarify this but it did not.

I wish to rely on the principle set out in *Mhungu* v *Mtindi* 1986 (2) ZLR 171 (SC) @ 173A-B. It is that a court is entitled to refer to its own records and proceedings and to take note of its contents. Record HCBC 205/26 in which the purported resignation of the respondent is challenged questions the deponent's alleged sole directorship. The deponent has not pleaded this fact of sole directorship in the founding affidavit. Even if that position was to be taken as correct, that the respondent resigned, then Frank McCourt would be another director and Pride Mandizvidza the secretary. The applicant elected not to file an answering affidavit and these factual averments by the respondent remain unchallenged on the record and are taken as admitted therefore. In the circumstances, it is not factually correct that the deponent is the sole director.

The legal position is succinctly set out in *Madzivire & ORS* v *Zvarivadza & ORS* 2006 (1) ZLR 514 @ 515 per CHEDA JA.

> "A company, being a separate legal person from its directors, cannot be represented in a legal suit by a person who has not been authorized to do so. This is a well-established legal principle, which the court cannot ignore. It does not depend on the pleadings by either party……. The general rule is that directors of s company can only act validly when assembled at a board meeting. An exception to this rule is where a company has only one director who can perform all judicial acts without holding a full meeting."

In *casu* it has not been established that the applicant has only one director who can perform all judicial acts without holding a full meeting. The onus was on the applicant to establish this, and it did not.

The point *in limine* taken by the respondent must therefore succeed. In the result, I make the following order:

The matter is struck off the roll with costs.

MUCHAWA J……

Colghlan Welsh and Guest, Applicant's Legal Practitioners
Messrs Majoko & Majoko, Respondents Legal Practitioners